

TENTATIVE RULING FOR MAY 13, 2026

Department R12 - Judge Kory Mathewson

Pierre v. Red Hill Country Club – CIVRS2505383

Motion: Motion to Tax Costs

Movant: Plaintiff Donald Ray Pierre

Respondent: Defendants Red Hill County Club and Chris Frame

RULING: Motion to Tax Costs is GRANTED, in part (\$349.50 in service of process costs + \$120 filing fee), Denied in part, (as to \$969.28, which is awarded to Defendants).

Defendants - to provide Order(s) and give Notice.

The court strikes Red Hill's service of process costs in its entirety and taxes the subject filing fees for \$120. Preliminarily, the subject cost memorandum indicates it pertains to defendant Red Hill only, however, in opposition to the instant Motion, defendants Red Hill and Frame submit invoices and the declaration of Poelstra indicating the memorandum clearly includes costs for both defendants. The court finds that Plaintiff's Motion is a proper objection as Red Hill's filing and service of process costs appear excessive for the one defendant and as such, do not appear proper of its face. (*Nelson v. Anderson, supra*, 72 Cal.App.4th 111, 131.) As such, the burden of proof is on Red Hill to justify them by providing evidence and supporting documentation. (*Ladas, supra*, 19 Cal.App.4th at p. 774; *Levy v. Toyota Motor Sales, Inc.* (1992) 4 Cal.App.4th 807, 816.)

Here, Red Hill's supporting documentation clearly includes costs incurred by both it and Frame. As set forth in Defendants' Opposition, the service of process costs were exclusively incurred by Frame to serve deposition subpoenas. Further, Defendants note two motions were filed exclusively for Frame, a demurrer and a motion to strike. Red Hill's invoices, however, fail to differentiate between the filings for the two defendants. Therefore, the court taxes Red Hill's cost memorandum by \$120, and strikes the service and process fees in its entirety. The remaining \$969.28 is awarded.

Dated: May 13, 2026

Judge Kory Mathewson